



POLICE DEPARTMENT

January 13, 2009

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Theresa Wilson
Tax Registry No. 896110
Community Affairs Bureau
Disciplinary Case No. 83050/07

The above-named member of the Department appeared before me on July 30, 2008, July 31, 2008, and October 22, 2008, charged with the following:

1. Said Sergeant Theresa Wilson, assigned to the 50th Precinct, on or about January 7, 2006, April 30, 2003, while on-duty and in uniform, did wrongfully wear her hair such that it fell below said Sergeant's collar.

PG 203-07, Page 1, Paragraph 6 (b) - PERFORMANCE ON DUTY- PERSONAL
APPEARANCE GENERAL REGULATIONS

2. Said Sergeant Theresa Wilson, assigned to the 50th Precinct, on or about March 7, 2006, did fail and neglect to answer the Department telephone in the 50th Precinct Domestic Violence Unit in a courteous manner, indicating rank or title, surname, and asking to assist the caller, as required.

PG 203-05, Page 2, Paragraph 11 – PERFORMANCE ON DUTY – GENERAL
REGULATIONS

3. Said Sergeant Theresa Wilson, assigned to the 50th Precinct, on or about March 7, 2006, was discourteous to New York City Police Lieutenant John Trotta, Operations Coordinator, 50th Precinct, in that said Sergeant, having been counseled by said Lieutenant inside his office regarding the procedure to answer a Department telephone and given a printed copy of Patrol Guide Section 203-05, was discourteous to said Lieutenant, in that said Sergeant did crumple said printed matter in the presence of said Lieutenant as she exited his office.

PG 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL
REGULATIONS

4. Said Sergeant Theresa Wilson, assigned to the 50th Precinct, as of May 16, 2006, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that, having been assigned on or about October 25, 2005 a "Referral of 311 Complaint," to

COURTESY • PROFESSIONALISM • RESPECT

investigate, via communication No. COD311 # 193976935, from the Commanding Officer, Patrol Borough Bronx, to be completed by December 5, 2005, did fail and neglect to perform such assignment, as directed.

PG 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED
CONDUCT GENERAL REGULATIONS

The Department was represented by David Green, Esq., Department Advocate's Office, and the Respondent was represented by Anthony J. DiFiore, Esq.

The Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty of Specifications 1, 2, and 3, and Not Guilty of Specification 4.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant John Trotta, Police Officer Marisol Guerrero, Police Officer Jenny Castro, Captain Paul Lichtbraun, Inspector Timothy Hardiman, and Captain Edward Edwards as witnesses.

Lieutenant John Trotta

Trotta was the Operations Coordinator at the 50 Precinct, with responsibility for the day-to-day operations of the command. He knew the Respondent as the 50 Precinct's Domestic Violence ("DV") Sergeant.

Trotta testified that he issued the Respondent a Command Discipline ("CD," see Department Exhibit [DX] 1, CD of Mar. 7, 2006) as the result of an incident that took place on March 7, 2006. Trotta stated that on that day, he called the 50 Precinct's Domestic Violence Office ("50 DVO"). The person that answered was "barely audible," and "mumbled something like 50 DVO." Trotta identified himself, and "found out it was Sergeant Wilson." He was "kind of surprised" that the Respondent answered the phone that way. According to the Patrol Guide, Trotta testified, a member of the service should answer the telephone by giving your command, name and rank, and "How may I help you?"¹

Trotta testified that he asked the Respondent "why are you answering the phone like that? I can't even understand you." The Respondent replied "something about she wasn't feeling well," and that she was taught to answer the phone in that manner because "perps call" the DV Office, and the officers didn't want to give their names, "they don't want them to know who they are, something like that." Trotta testified that he was "incredulous," and had never heard that explanation before. He "knew it was incorrect." He told the Respondent, "Well, from this point forward you are not going to do that. You are going to answer the phone as per Patrol Guide procedures." They then discussed the matter Trotta had originally called about. Trotta conceded that he had never been assigned to DV.

Trotta stated that after hanging up, he called the Domestic Violence Office at Patrol Borough Bronx (PBBX) to see if they were training personnel in the manner the Respondent

¹ This is covered in *Patrol Guide* § 203-05 (11).

described. The person Trotta spoke to “had never heard of anything like that.” Thus, Trotta said, “I knew it was incorrect or a lie.” Trotta also looked up the relevant Patrol Guide section to re-affirm in his mind that he was right. Trotta also called Lieutenant O’Brien,² the Respondent’s direct supervisor and special operations lieutenant, and asked, “Is there something I am missing something here, that . . . you are taught to answer the phone like that?” Trotta asserted that O’Brien told him “that was patently false, he had never heard ever anything like that.”

After speaking to O’Brien, Trotta called the Respondent again and told her to see him, along with the two Police Officers in her unit, Castro and Guerrero, before she went to a scheduled meeting at PBBX. Castro and Guerrero were under the Respondent’s direct supervision. In preparation, Trotta made copies of the relevant Patrol Guide procedure in order to instruct all three members on the proper way to answer the phone. He “[p]robably” highlighted something on the page. Trotta asserted that he did not want to single out anyone, and as it was a small unit, and in order to “make sure everything was right,” he would “bring them all together, show them all each the way it is done so there are no mistakes and personally do it.”

When the Respondent, Castro and Guerrero arrived in his office, Trotta handed each of them a copy of the Patrol Guide section and had them look at it and “absorb” it. Trotta stood to give them the papers, then sat down. He “reiterated” to them, “You are going to answer the phone as per Patrol Guide procedures.” After the Respondent read it and “they absorbed it all,” Trotta asked each of them if they understood, and each said they did. Trotta asserted that he spoke to the Respondent and the Police Officers in an “[i]nstructive manner,” but did not raise his voice or yell at them.

Trotta testified that after he dismissed the officers, the Respondent crumpled the paper he had given her “right in front of me in a show of discourtesy.” The Respondent was facing him as

² The Advocate indicated that O’Brien was unavailable to testify because he was on military leave in Afghanistan.

she did so, right inside the doorway of his office. He did not recall whether the Respondent was carrying anything else.

Trotta testified that he was "offended" by the discourtesy, "a bit taken aback," and "shocked." He said, "Okay. You got a complaint for that." The Respondent did not say anything, and left Trotta's office.

Trotta testified that immediately after the meeting, he spoke to then-Deputy Inspector Hardiman about it. Hardiman was "a little surprised," but agreed with Trotta "100 percent."

Trotta denied knowing on the day of the incident that the Respondent had been injured that day. He stated that he found out about some kind of injury later, "but there is always some drama at the Command that I was unaware of anything like that."

Trotta admitted that at times, he might have called the 50 DVO, and when the Respondent answered, he cut her off before she could answer in the proper manner because he was busy.

Trotta testified that he issued a second Command Discipline (see DX-2, CD of May 16, 2006) to the Respondent on May 16, 2006, as a result of a "[f]ailure to submit a communication." Trotta described a communication as an assignment from, for example, Headquarters or the 311 system, to investigate a complaint or condition. Trotta testified that in the 50 Precinct, communications of this sort had been handled by then-Lieutenant Lichtbraun. In March or April of 2006, these matters were assigned to Trotta after Lichtbraun moved to another assignment. Trotta would assign the communications to a relevant supervisor.

The communication in question was detailed in DX-3. Page 2 of DX-3 was a report from the 311 system. On October 2, 2005, an individual called 311 and asserted that although she had an order of protection against a neighbor, she received discourteous treatment from officers from the 50 Precinct. Page 1 of DX-3, a "49" from PBBX to the Commanding Officer (CO) of the 50

Precinct, indicated that PBBX referred the communication to the 50 Precinct on October 25, 2005. Typically, Trotta testified, his command would receive communications from PBBX three days later. The due date for the communication, listed on the referral, was December 5, 2005.

Trotta testified that the communication was assigned to the Respondent by Lichtbraun (page 1 of DX-3 indicates in writing that the Respondent was assigned). He admitted that he did not know when Lichtbraun made the assignment. Trotta stated that the Respondent would have been required to, at the outset, contact the 311 complainant. She was also required to file a "pre-printed report detailing the steps you take."

Trotta claimed that the communication was overdue from the Respondent for more than six months, and that after several requests to her to produce it, she said she had given it to Lichtbraun. Lichtbraun, however, told Trotta that he never received it. Trotta looked for it in Lichtbraun's files, and could not find it. He contended that there was no evidence the Respondent had prepared her response to the communication.

Trotta testified that he told the Respondent to produce another response to the communication, but she "kind of put me off." Eventually, Trotta told her, "You have to produce another one."

Trotta stated that several communications were overdue when he took over from Lichtbraun. He admitted that the Respondent was the only person issued a CD for having an overdue communication, "because it was so long overdue."

Trotta did not dispute that the Respondent may have completed the assignment at one point, but he did not have it in his possession. He issued the CD to her because she failed, after approximately three months, to give him a duplicate copy of the communication. "She claimed she did it, she completed" the original communication, and he "took her at her word." He agreed that the "49" from Hardiman to the CO of PBBX (pages 3 and 4 of DX-3) was dated December

5, 2005, and stated that the Respondent had conducted an investigation into the 311 complaint. Trotta believed that page 5 of DX-3, dated June 1, 2006, was the copy of the communication that the Respondent gave him after he asked for it.

Police Officer Marisol Guerrero

Guerrero had been assigned to the 50 Precinct for all twelve years she had been a Department member. For four years, she was assigned to the 50 DVO. The Respondent used to be her supervisor there. There were three Police Officers assigned to the 50 DVO: Guerrero, Castro, and Ramos.

Guerrero recalled that on March 7, 2006, she, the Respondent, and Castro went to Trotta's office at the direction of the Respondent. Guerrero believed that earlier, the Respondent had spoken to Trotta on the telephone, and that the reason they had to go to his office had something to do with how to answer the phones. Guerrero testified that she received special DV training when she was assigned to the 50 DVO, and had to attend annual re-trainings. She never received any instruction that the staff should answer the phone differently than as directed in the Patrol Guide. She asserted that she always answered the phone, "50, Officer Guerrero, may I help you?"

At Trotta's office, Trotta gave them each a piece of paper, on which was highlighted the Patrol Guide procedure on how to answer the phone. Trotta was standing, and said, "This is how phones should be answered." He did not yell or raise his voice. He made eye contact with each of them, and was not directing his comments to any one person. Guerrero confirmed that she understood Trotta's order, and all three of the officers said "okay."

As they were leaving the office, Guerrero heard the Respondent crumple the piece of paper. The Respondent was closest to the door; Castro was between the Respondent and

Guerrero. Guerrero characterized the crumple as quick rather than slow. The Respondent did not crumple the paper in Trotta's face. She did not recall what else the Respondent was carrying, if anything.

Trotta said, "Is there a problem, Sergeant Wilson?" Guerrero did not hear the Respondent answer. Guerrero did not say anything, but her reaction was "This is not good." She saw the Respondent's action as discourteous to Trotta, as he had just given them documentation on how to answer the phones, "and you just don't do that in front of him."

Later that day, Guerrero attended a DV meeting at PBBX, but did not recall if the Respondent went. Guerrero remembered reminding her that there was a Borough meeting.

Guerrero testified that on March 7, 2006, the Respondent said that her knees hurt. She was not bleeding, limping, or leaning on anything. She did not indicate that she needed medical attention. Guerrero heard that the Respondent had fallen, but did not see her fall.

Police Officer Jenny Castro

Castro had been assigned to the 50 Precinct for all five years she had been a member of the Department, and had served at the 50 DVO for about four years. The Respondent was her supervisor.

On March 7, 2006, Castro testified that she, the Respondent, and Guerrero were in the 50 DVO office preparing to go to their monthly DV meeting at PBBX. Castro had heard that the Respondent had tripped and injured her knee. The Respondent mentioned that her knee was in pain. She was not limping and did not have difficulty walking, and did not say she needed medical attention.

Castro remembered that on March 7, 2006, a phone call was made to the 50 DVO. The Respondent answered by saying, "50 DVO." The person on the other line, who Castro thought

was Trotta, was questioning her about her answering of the phone. The Respondent said, "We have gone to Domestic Violence training, where we have been instructed to answer the phone this way."

Castro said that she always answered the phone, "50 DVO," as the Respondent had instructed her to answer the phone that way within the first few months of Castro's assignment to the 50 DVO. The Respondent told Castro, "We don't want . . . potential defendants or perps to know" whom they were calling. Castro did "go for some sort of training" when she was first assigned to the 50 DVO, but she was not told how to answer the phone.

About two weeks to a month prior to the day in question, Castro answered the phone, "50 DVO," and Trotta was on the other line. He paused, and said, "Is this how you answer the phone, Officer Castro?" Castro said that her supervisor instructed her to answer that way, and Trotta left it at that. No other supervisors complained about the way that Castro answered the phone. Castro asserted that Guerrero answered the phone, "50 DVO" as well, but then said, "I cannot speak for her people how they answer the phone."

Castro, Guerrero and the Respondent went to Trotta's office. They were planning to go "straight out the door" (i.e., to the PBBX DV session) after the meeting with Trotta. On the way, Castro said to the Respondent, "Remember that [Trotta] called me a few weeks ago, and he told me that, and he questioned me on it."

When they arrived at Trotta's office, all three stood and faced Trotta, who was also standing. Trotta gave the officers a highlighted section of the Patrol Guide, "made [them] look at it," and said, "I am not aware of any other procedures on how to answer the phone. This is how I am expecting you to answer the phone from now on . . . despite how you have been trained in the past." Castro "felt that whatever message he was conveying at that moment, he was conveying to the three of us." He did not yell or raise his voice, but was "firm" and "serious" and "meant

the order that he was giving us.” Trotta asked if they understood or had any questions. All three officers either nodded their heads, said something along the lines of “yes, sir,” or both. When Trotta gave them the Patrol Guide section, Castro did not recall him saying, “You have to hold it and hold onto it for dear life,” but she remembered that they had to read and acknowledge it. Castro taped the paper to a wall near her desk.

On direct examination, Castro testified that she took Trotta’s instruction as a direct order. On cross-examination, Castro stated that she “didn’t know this was an order he was giving us,” but added “I didn’t think that how he was addressing us, this was in a friendly manner.” Castro did not recall Trotta telling the Respondent, “I don’t care what the Chief’s office says; this is how you answer the phone.”

Castro testified that as she, Guerrero and the Respondent turned to leave, she heard “a crumpling of paper.” Trotta said, “Is there a problem, Sergeant Wilson?” Castro testified that the Respondent had just crumpled the paper Trotta had given them. Castro thought this was disrespectful because Trotta was a Lieutenant and a supervisor.

Castro testified that she tried to leave Trotta’s office as soon as possible because she “didn’t know what else was going to happen,” and she “had nothing else to do with anything else that was going to go on.”

Castro stated that she, Guerrero and the Respondent all went to the meeting at PBBX later that day, although she could actually only state that they went to the Borough, and not necessarily that the meeting took place. After they returned, the Respondent went to the emergency room.

Captain Paul Lichtbraun

Before his promotion to Captain, Lichtbraun was the Integrity Control Officer (ICO) in the 50 Precinct. He knew the Respondent, but was not her direct supervisor, although he “oversaw the unit generally.”

Lichtbraun identified DX-3 as a referral of a complaint made through the 311 system. The complaint would have been received at 311’s Manhattan call center. 311 would have referred it to the Chief of Department, and from there it would have gone to PBBX, then the 50 Precinct. It ordinarily would take “a couple of weeks” from the time the complaint was made until the 50 Precinct received it. The “Due Date” on page 2 of DX-3, October 18, 2005, was set by the 311 system.

As the ICO, Lichtbraun was responsible for “the distribution and completion” of referral assignments. He explained that because DX-3 was dated October 25, 2005, by the CO of PBBX, the 50 Precinct would have received it “a couple of days” later by Department mail. Lichtbraun would give the communications “[a]lmost immediately,” at least the same day he received them, to Police Administrative Aide Hope, and direct her how to distribute them. For example, if the communication was a complaint about a particular officer, it would be referred to that officer’s supervisor. If it involved a school, it would go to the school sergeant. Lichtbraun testified that he would give Hope at one time all the communications that came in on a given day. Sometimes as many as ten communications would come in, and sometimes none. Hope kept a logbook of the assignments that included the complaint number, the due date, the assigned supervisor, and the date completed. Lichtbraun testified that he reviewed this logbook. After the communications were completed, Lichtbraun would have them signed by the CO.

Lichtbraun explained that the handwritten words "Assign: Sgt. Wilson" on DX-3 were written by Hope, after he gave her a verbal instruction to refer the communication to the Respondent. The written note "50 Pct. 311 #31" was also added by Hope.

Lichtbraun testified that the written date of December 5, 2005, in the space labeled "Investigation and Report **NO LATER THAN**" meant that the referral was to be completed by that date. This was not "hard and fast," but if it were not completed by the end of the month, PBBX "would go looking for" it.

The supervisor, in responding to the complaint, was required to prepare a written report in a specific format. In DX-3, pages 3 and 4 constituted the report. The format was a "49," but with specific "captions." The report is prepared for the CO's signature. The supervisor is the person that dates page 3 (in DX-3 this was dated December 5, 2005). Page 5 was the "disposition sheet," a form to be filled out by the supervisor. The supervisor also was to date the disposition sheet (here, June 1, 2006).

Lichtbraun testified that the supervisors would either hand him the completed communications or put them in a mailbox. Most of the time, he would have a PAA retrieve his mail, and the PAA would leave the mail on his desk. The original communication would be sent to PBBX, Lichtbraun would keep a copy, and a copy would be made for the precinct.

Lichtbraun testified that he never received the communication from the Respondent by December 5, 2005. His usual practice was to give a notice that the communication was overdue, or to speak to the officer. He was "sure" he did this with the Respondent, but did not "specifically remember doing so." The written notices were done on a computer. Lichtbraun saved them on a floppy disk, as opposed to the hard drive, because his office computer was old and unreliable. He may have saved some on the hard drive. He asserted that he maintained the

disks in a box, and took the box with him to his new assignment, Police Service Area 6. He searched for the box at PSA 6 but could not find them.

Lichtbraun asserted that he “definitely didn’t lose the assignment” after the Respondent gave it to him. He did not ask the Respondent if she called the complainant, or if she checked Department computer records, or if there was an Order of Protection involved (as referenced by the complainant in her call to 311).

Lichtbraun’s assignment at the 50 Precinct ended on April 27, 2006; he was promoted to Captain the next day. Trotta took over the supervision of these communications. Trotta called Lichtbraun several times, asking if he had seen the completed communication or knew anything about it. Lichtbraun testified that he told Trotta he had “never seen the communication,” then clarified that he told Trotta he “never received the communication completed.” Lichtbraun testified, however, that he advised Trotta to look in places to see if it had been misplaced, but it was not located. Lichtbraun did not know if the Respondent kept her own copies of completed communications.

Lichtbraun testified that he did not review the logbook before his testimony. He asserted that while the logbook would now list the communication in question as completed on a certain date because it was now in fact completed, the completed-date space would have been blank.

Lichtbraun stated that there were other uncompleted communications at the time he left the 50 Precinct. Lichtbraun testified that he did not advise Trotta to issue the Respondent a Command Discipline. He stated that he had issued other CDs to other Department members for uncompleted communications.

On cross-examination, Lichtbraun testified that he had issued a CD to the Respondent for being off post concerning an incident that occurred on August 19, 2005. At approximately 12:15 a.m., he was on patrol, supervising the midnight tour, in the vicinity of University Avenue in the

50 Precinct. He observed a marked Department van from the 50 Precinct on University Avenue. Lichtbraun, traveling south on University Avenue, drove past the van. Several minutes later, a call for assistance came over the radio, in which officers were conducting a foot pursuit, then struggling with an individual they were trying to arrest. Lichtbraun drove toward the call, and as he approached Kingsbridge Road, he saw the van continuing south on University Avenue. Lichtbraun wrote down the van number, but proceeded toward the emergency, which was resolved with an arrest. When he returned to the 50 Precinct house, he found that the Respondent and eight Police Officers were assigned to the van.

Lichtbraun testified that the Respondent was off post because she and the Police Officers were supposed to be on an Atlas post. This was an overtime location in which officers were assigned to high-profile locations where terrorist activity might occur. In the Bronx, this included the bridges, cultural attractions like the Bronx Zoo, and business districts. Lichtbraun testified that on August 19, 2005, the Respondent was supposed to be at the Triborough Bridge, conducting a vehicle checkpoint, from 2230 hours to 0030 hours. Lichtbraun contended that the Respondent “never really gave me an answer for why she wasn’t at the bridge.” She said, however, that she did not respond to the call for assistance because she was monitoring the 40 Precinct’s radio.

Lichtbraun stated that he talked to the Respondent’s direct supervisor, a lieutenant, and the supervisor said he had not made any changes to the Respondent’s tour for that day. Nothing was told to Lichtbraun about a shooting in the 44 Precinct, and “they would be taking a slow ride toward the Triborough Bridge to see if they could see anything . . . and to keep monitoring your radio, the chief might be contacting you.” Lichtbraun noted that the 40 and 44 Precincts share the same frequency. He stated that the Respondent was supposed to set her frequency to the 50 Precinct if she was physically in the 50 Precinct, even though her assigned post was in the 40

Precinct. He agreed that if a Lieutenant ordered the Respondent to monitor the 44 Precinct, "she should have one radio on the 44," but one of the eight Police Officers "should have put on the 50."

Lichtbraun testified that only the Respondent received a CD for the incident because she was the only supervisor. He did not know who was driving. Lichtbraun did not recall whether any of the Police Officers in the van were female or African-American. He testified that the Respondent accepted the CD.

Lichtbraun testified that during the time he indirectly supervised the Respondent as ICO, which was July 2001 to April 27, 2006, he had seen her with her hair below her collar while she was in uniform. He did not give her a CD or discuss it with her, because this "was never a major issue in the 50th Precinct."

Inspector Timothy Hardiman

Hardiman was the Commanding Officer of the 50 Precinct from January 2004 to September 2006. The Respondent was the Domestic Violence sergeant when he was first assigned.

Hardiman recalled that on March 7, 2006, Trotta came to his office and discussed an incident that had occurred between him and the Respondent. Hardiman "had the sense it had just happened just minutes before." Trotta was "perturbed." He told Hardiman that he had "counseled" the Respondent on "the proper way to answer the phone in the Domestic Violence Office." Hardiman did not recall whether Trotta said he summoned her to his office to discuss this, or whether "they had just gotten together." Hardiman stated that apparently, "there was some disagreement" between Trotta and the Respondent as to whether DV officers "as a whole were exempt from the Department's policy on answering a phone with your name, rank and

command.” Trotta’s understanding was that the phone should be answered at DV the same way as any other office in the Department: rank, name, command, and “may I help you?”

Trotta told Hardiman that after he gave the Respondent a copy of the Patrol Guide procedure delineating this policy, “in his presence she crumpled it up and tossed it in the wastebasket.” Hardiman did not say she crumpled it “in his face.” Hardiman did not recall whether Trotta indicated the presence of anyone else when this happened. Trotta did not tell Hardiman that he told the Respondent to read and acknowledge the paper. Hardiman agreed that if he had given someone a Patrol Guide document and asked the person to read it, this would not mean the person had to “retain it forever.”

Hardiman characterized Trotta as “angry, but in control, but he was clearly angered by this.” Hardiman testified that he told Trotta that “he was well within his rights” to begin formal disciplinary proceedings against the Respondent. Trotta felt that a verbal warning would not suffice, and indicated that he wanted to issue a CD to her. Hardiman “certainly didn’t try to dissuade him from that.” Hardiman testified that he had no reason to doubt Trotta’s judgment.

Probably within an hour or two of the session with Trotta, Hardiman spoke with the Respondent. He believed she came on her own. Hardiman told the Respondent, “What went on in there? You can’t do that to a lieutenant” and act disrespectfully toward him. The Respondent “hung her head,” and admitted she was wrong to crumple the paper, but insisted she was correct about how to answer the phone. Hardiman told her that was irrelevant now, and she should not have been disrespectful. Hardiman characterized the Respondent’s demeanor as “sad that it had gotten to this point.”

On direct examination, Hardiman testified that he believed he told the Respondent that “she should go make peace with” Trotta. On cross-examination, however, he testified that he “really d[id]n’t specifically remember” using the words “make peace.”

Hardiman did not know if the Respondent was injured that day, or if she was out sick for three months around that time. He recalled, however, that she went to the hospital that day as a result of a fall that occurred in the stationhouse. Hardiman testified that the Respondent did not express any frustration to him at how she was being treated within the command. She did not tell him that Trotta "had come in on his day off to yell at her," that he was out to get her, or that he told her, "I can have you transferred out of here if I want to." Hardiman denied that he was ever told by anyone, while he was CO of the 50 Precinct, that the Respondent was not liked. No one under his supervision ever informed him that the Respondent was told that nobody liked her.

Hardiman denied sending the Respondent to the Psychological Services Section, and did not recall that her guns were removed. He referred to a procedure as I.O. 9, though he believed "the actual procedure has changed."³ Hardiman characterized the procedure as a "very low level of firearms removal," in which a member would be sent to Psych Services, and "literally, we would hold" that member's "firearms in the precinct." Very often the doctor would immediately return the member to full duty, saying, "Yes, this person is upset. Yes, this person is depressed, but they are not a danger to themselves or anybody else, and they are fit to carry firearms."

Hardiman denied knowing the disparate treatment of any Department member in the 50 Precinct on the basis of gender, race, sexual orientation, or "any other way." If he had become so aware, he said, he would have contacted the office of Equal Employment Opportunity.

Hardiman admitted that he usually answered the phone just by giving his name, rank, and brief indication of command, such as "Inspector Hardiman, 47." He never received a CD for not saying "May I help you?" Hardiman testified that while he had never issued a CD for improperly answering the phone, he knew of two Police Officers that had been cited for doing so. In one instance, an officer in the Midtown South Precinct received a CD when a Captain

³ See *Patrol Guide* § 205-47, "Temporary Removal of Firearms in Non-Disciplinary Cases."

called, the officer “thought it was one of her friends calling, and it really spiraled downhill from there.” Hardiman also knew of an officer in the Queens South Task Force who failed a Quality Assurance Division test (also known as a Courtesy, Professionalism and Respect test).

Hardiman testified that he would not be surprised to learn that two integrity tests were given to the Respondent during the period he was the CO there, and that she passed both of them. Hardiman considered the Respondent “[a]bove average” or excellent. The 50 DVO “ran very well.” If she were to have left the 50 Precinct, Hardiman would have considered this a loss because “it would be some period of time, no matter who the sergeant was, to get them up to speed on all the procedures and policies that go along with Domestic Violence.”

Hardiman stated that the Respondent’s hair “tended to extend . . . not . . . below the collar, but past the collar. It kind of came straight out without actually dropping below the collar.” He testified that he probably had seen the Respondent and other officers, male and female, “where their hair was below exact regulations.” Hardiman testified that he had never “written up” the Respondent for this violation. Nor did he know of any other officers who were so disciplined while he was the 50 Precinct’s CO. He stated that the Respondent was never discourteous to him.

Hardiman made written comments on the Respondent’s request for transfer (UF-57), dated June 15, 2006 (see Respondent’s Exhibit [RX] B). He agreed that he gave her a “very favorable, highly recommended” rating. Hardiman explained that even though the Respondent had three CDs (including the one issued by Captain Edward Edwards, see infra), the most serious was the disrespect to Trotta, which was not a “minor” infraction, but not a “capital offense” either. “Failure to answer the phone, even hair being too long, I don’t believe significant enough to hold up somebody’s career.”

Hardiman did not recall telling the Respondent, "You are going on your fourth or fifth Command Discipline; why don't you go apologize to Lieutenant Trotta." This "certainly could have happened" but Hardiman "wouldn't have thought she had that many."

Hardiman testified that there should have been an additional cover sheet on DX-3, the communication, "if this is an assignment." Hardiman stated that the "communication is to whether or not there was any misconduct by the police officers in handling the civilian's complaint." He explained that a 311 complaint would only become a communication if a civilian was unhappy with the service they received from the Department regarding the 311 call. For example, if the call was about a blocked driveway, "it is dispatched out by" the telephone dispatch operator "and any officer handles it." It would become a communication if someone calls 311 and alleges "the police never did anything about my blocked driveway, panhandling, et cetera."

Hardiman estimated that it would take at least 30 days from the time of the 311 call until it was assigned to someone at the command as a communication. He based this on the fact that the complaint had to filter from the Mayor's Office, to the Police Commissioner, to the Chief of Department, to the Chief of Patrol, to the Patrol Borough, and then to the precinct.

Hardiman testified that because the "49" (page 3 of DX-3) was dated December 5, 2005, he would expect that the "49" was prepared. He did not, however, necessarily sign the communication on that date. He explained that communications came to him for review and signature in a folder with several documents. The "outside" would be up to a week from when he received the documents until he signed them. Thus, it could have been up to two weeks after December 5, 2005, that Hardiman signed the communication "by the time lieutenants get done with it and it gets to me."

Hardiman testified that the command kept track of the communications through a log. Whoever assigned the communications was in charge of the log, either the ICO or a captain's clerical. Hardiman did not require the person in charge to back up the log on a computer.

Captain Edward Edwards

Edwards, who worked in the Bronx, had the responsibility of ensuring compliance with Department rules and regulations. In this capacity, his routine was to visit precincts, supervisors, and officers in the field.

Edwards testified that he issued a Command Discipline to the Respondent on January 7, 2006, for failing to maintain a neat personal appearance, viz., that her hair had fallen below her collar (see DX-4, CD of Jan. 7, 2006). He believed that her hair was longer and thicker than it was at trial.⁴ This occurred at the 50 Precinct. Edwards did not recall the time of day when the alleged infraction occurred.

Edwards testified that he had issued a prior CD to the Respondent on October 27, 2005, also for hair falling below the collar (see DX-5, CD of Oct. 27, 2005). Edwards testified that the Respondent accepted the CD, with a penalty of warn-and-admonish, on November 9, 2005.

Edwards asserted that the October 2005 incident was not the first time he observed the Respondent with her hair below her collar. He said that on May 4, 2005, it "appeared" that the Respondent "had dreadlocks," and "her hair was falling long into her back area." He recalled that the Respondent's hair was "[t]hicker, longer and sloppy." Because he thought the dreadlocks might have religious significance, Edwards contacted Sergeant Rodriguez in "Labor Relations" two days later. After Rodriguez referred him to other personnel, "[w]hat I got out of this is that the dreadlocks may or may not have religious significance. Be it as it may," Edwards

⁴ On the day of Edwards's testimony, the Respondent's hair was styled in multiple small (non-dreadlock) braids and tied in the back.

claimed, it was still a violation of Department regulations for the hair to fall below the collar “regardless of this religious issue.” Edwards did not take any disciplinary action against the Respondent at this time.

Edwards testified that he issued the CDs in question because he “felt it was minor in nature.” He did not “go with something less” because he “h[e]ld supervisors to a higher standard” than Police Officers. “They have to set an example.”

On cross-examination, Edwards testified that he did not know where in the precinct the Respondent was when he observed the January 2006 infraction (for which she is charged here). Edwards later stated that he believed she was in the Desk area. The Respondent was in uniform. He recalled “something about something was weaved into her hair.” It appeared sloppy to him, although he conceded that the CD did not mention the word “dreadlocks.” There would not have been a problem if the Respondent’s hair had appeared the way it did at trial.

Edwards did not recall how far below the collar the Respondent’s hair had fallen, but stated that it was a “significant amount.” He did not remember whether she was wearing a cap. He denied the possibility that her hair was to the top of her collar, or that she might have been sitting or leaning in a certain way that would have made it appear as though her hair was below her collar when it actually was not. He did not issue a Minor Violation, he testified, because he had already issued the prior CD and warning (DX-5).

Edwards testified that he spoke to several people in the Respondent’s command about her long hair, as well as to superior officers about her performance as a Sergeant. The Respondent’s supervisors told him that “she does her duties very well, she is a good supervisor and performs very well.” He denied telling Lieutenant Hernandez that he was going to “get” the Respondent. He denied that he was singling her out, and stated that he did not know the Respondent “prior to

any of this.” Edwards asserted that if a Department member of a lower rank had committed the same infraction, he most likely would have issued a Minor Violation.

Edwards stated that he had issued a “violation[]” to a female Lieutenant in the 42 Precinct for a long-hair infraction, and believed he had done so for Police Officers as well.

Edwards testified that he spoke to the Respondent on one occasion about the fact that she was not wearing her uniform tie. Because he “was unaware of the procedure,” however, he did not issue a CD. He believed that a promulgated FINEST message allowed members wearing the long sleeve uniform shirt to wear a turtleneck without a tie.

On re-direct examination, Edwards admitted that he did not “really” know “the differences with respect to female hair styles of certain type of braids v. dreadlocks.” By dreadlocks, Edwards meant where the “hair is thicker than it is now that I am seeing on her.”

Edwards stated that he had issued perhaps as many as 200 CDs in the Bronx related to personal appearance, including hair matters. He denied focusing on race, gender or ethnicity in issuing them.

The Respondent’s Case

The Respondent testified on her own behalf.

The Respondent

The Respondent testified that on January 7, 2006, she was in uniform, working as the DV Sergeant. Sergeant Cesarz asked her to enter a vehicle alarm into the computer, and she attempted to do so. She was sitting next to the Desk, but “was kind of like frustrated” because she “couldn’t get it to enter the alarm.” She “jumped up” and was “hunched over.” Cesarz and Lieutenant Hernandez were also present.

The Respondent denied that her hair was below her collar. She stated that her hair was up, but the bun was not as tight as it was on the day she testified. She asserted that her hair had always been braided, but she never had dreadlocks, as it "takes a long time" to do so. She never had a weave either.

The Respondent testified that Edwards entered the command. She knew because "everything got quiet," meaning that Cesarz disappeared. The Respondent turned to her left and saw Edwards staring at her. The Respondent testified that she was nervous because she "knew he was after me," claiming that she was told this by Trotta. She asserted that Trotta told her she was "not liked in the command. I should leave. No one likes me." The Respondent testified "it is not like in my imagination or anything like that."

The Respondent stated that Cesarz "disappeared on me," and Edwards spoke to Hernandez. Hernandez, motioning to either his hair or the Respondent's, advised her to return to her office and remain there.

The Respondent testified that she received a Command Discipline in the mail for the January 2006 incident. She then stated that she was called to the captain's office because she "had a command discipline."

The Respondent claimed that she signed off on the October 27, 2005, CD only because she "wanted it to go away." She testified that she did not "like problems. At the time it felt minor and I knew where it was coming from." She also signed off on a CD for failing to put an entry in the command log. The Respondent contended that she was unfairly selected and treated regarding the CDs, and said that one could confirm this by looking at when the "cluster" of CDs began.

The Respondent testified that on March 7, 2006, she was working at the Domestic Violence Office, when she fell. About twenty minutes later, while getting medical treatment, she

received a telephone call. She answered, "50 DVO, Sergeant Wilson," as she had done for the prior three to four years at that unit. She explained that when on the Desk phone, she would answer, "50 police precinct, how may I help you?" Sometimes, however, when she called a residence from the DVO, and would get a call back, "I will say hello. I think maybe someone from the residence is calling. . . . We have to be careful for the perpetrator."

The Respondent testified that Trotta was on the other line, and without waiting for her to finish, yelled, "Is that how you answer the phone?" Trotta then "came upstairs and looked at me."

The Respondent stated that she went to Trotta's office. Castro and Guerrero were there as well. In the office, Trotta handed the Respondent an Interim Order and told her "this is how I want you to answer the phone." She read the order as instructed, and was asked if she understood. She told Trotta she understood it, but also, "I called the Chief's office prior," testifying that she had spoken to the Chief of Domestic Violence about this. Trotta replied, "I don't care what the Chief said," and the Respondent said, "Okay" or "All right." She asserted that Trotta was yelling.

The Respondent had other papers – "figures and numbers and notes" – in her hands as she was leaving the office. She first admitted that as she turned to leave – specifically, as one foot was out the door – she crumpled up the piece of paper. She then asserted that she did not "crumple" the paper, defining that word as "balling it up." Instead, she said, she folded it lengthwise like an accordion. She asserted that Trotta did not tell her to hold onto the paper, and she had no intention of doing so.

The Respondent admitted that she was "very upset." When the Respondent "realized what I was doing I kind of opened it back up." As she left the office, Trotta yelled at her saying,

"Sgt. Wilson. You crumbled that up" or "what did you do to that paper? . . . Did you crumple that paper"? Trotta then "ran" to Hardiman's office.

The Respondent denied disrespecting Trotta or acting discourteously toward him. She did not roll her eyes or "huff and puff" at him.

The Respondent testified that Castro and Guerrero asked her, "What is he going to do with us." She told the Police Officers to hang a copy of the Interim Order in the office.

The Respondent testified that when she returned from the "[B]orough," she was told she was getting a CD. She received two CDs for March 7, 2006, one for, she believed, "disrespecting the supervisor," and one for improperly answering the phone.

The Respondent testified that she went to the emergency room for treatment during her tour. She tore a ligament in her knee, and also had a head injury and bleeding. She was out sick for three months.

The Respondent testified that Captain O'Brien completed her 2006 performance evaluation. She asserted that O'Brien told her "he had to put in his evaluation about my appearance even though he never witnessed any violation."

The Respondent believed that the Atlas incident (related by Lichtbraun in earlier testimony) "precipitated all this unfair treatment." That night, she said, there were several veteran Police Officers in her van. During her meal period, while she was sitting at the Desk, a Lieutenant also performing Atlas called and said there had been a triple shooting in the 44 Precinct, and he might have her respond. She told the Lieutenant that she would "take a slow ride through the borough." At 10:00 p.m., she and the Police Officers got in the van and began driving. When she returned from her tour, "the lieutenant," i.e., Lichtbraun, told the Respondent that "I saw your van going down. . . . [Y]ou kept going. I needed help. Respond to a 10[-]85." The Respondent received a CD for failing to respond to a 10-85.

The Respondent testified that she told her Commanding Officer she wanted to transfer commands.

The Respondent testified that Trotta was making her do "numerous tour changes to work the [D]esk," even though she still had to perform her DV work. She believed she received "[a] lot more tour changes as a specialized sergeant" than the command in general.

The Respondent testified about the communication that she allegedly failed to complete. It involved "[s]omething about a lady didn't agree with what one of the officers had to say." The Respondent believed she received the communication in late October or November 2006. She testified that she completed the communication prior to its due date of December 5, 2006. She believed Trotta, and not Lichtbraun, assigned her the communication.

The Respondent said, "Normally, Trotta has a mailbox on his door and everything is put there." She recalled placing the completed communication in that mailbox. After doing so, she went out sick. She received the CD (DX-4) while out sick, around May 2007. When she returned to work, Trotta asked her where the communication was. The Respondent told him she had completed it, and Trotta replied that he didn't have it. She told him, "I will just do it over."

The Respondent testified that while she was out sick, no one from the command contacted her and told her that there was a missing communication. She noted that she spoke to Cesarz and possibly a Lieutenant about receiving the CD.

The Respondent testified that while she was out sick, she went to see a Medical Division physician. During that visit, she was told by Hardiman that Trotta needed to see her.⁵ Trotta told her that he needed her to sign her evaluation. He did not tell her that she had an outstanding assignment.

⁵ A unit of the Medical Division is housed at the 50 Precinct Stationhouse.

On cross-examination, the Respondent agreed that aside from her last evaluation, which she did not sign, she received above-average work performance evaluations (4.5 out of 5) while assigned to the 50 Precinct. She agreed that the evaluations were reviewed by the Commanding Officer. She conceded that Trotta "had some input" into her evaluations.

The Respondent asserted that she had reason to be afraid of Edwards, noting that when he looked at her, she felt uncomfortable. She could not say how Edwards looked "at anyone else within the confines of the Bronx on patrol," but from her experience and twenty years in the Department, she knew "when someone is looking at me a certain way."

The Respondent admitted that she received a CD prior to the Atlas incident for failing to report to the range. She knew of no Minor Violations except "a phone call entry."

The Respondent testified that there was no "disagreement" between her and Trotta when she answered the phone. Rather, Trotta said something along the lines of, "Sgt. Wilson I can't hear you. What are you saying?" Castro, but not Guerrero, was present in the 50 DVO at this time.

The Respondent considered crumpling paper, as opposed to folding, to mean "with force and intention." She would have thrown the paper in the garbage if she had crumpled it, but "[t]his time, I don't know what I was doing." She explained, "Sometimes when you are not thinking as I wasn't thinking. I wanted to get out of there. . . . I am upset. He is yelling at me about answering the phone which I have been answering like that. . . . Mine was like let me get out of here. . . . I didn't realize what I was doing."

The Respondent characterized her emotions at the moment she handled the paper as "sad," but not "angry." She said that she was about to cry.

On re-direct examination, the Respondent said that only in her performance evaluation for January 2005 to January 2006 were there negative comments. She did not sign off on this

evaluation. She also did not sign off on a second evaluation “because they added more” and there were “two different stories.” The reason she did not sign was due to the comments about her “personal appearance that I argued with the supervisors.”

FINDINGS AND ANALYSIS

Specification No. 1

In the first specification, the Respondent is charged with wearing her hair so that it fell below her collar, in violation of *Patrol Guide* § 203-07 (6)(b). Edwards stated that he visited the 50 Precinct on January 7, 2006, and observed the Respondent in, he believed, the area of the Desk. Edwards stated that “something was weaved into her hair. Back then it was long. To me it appeared sloppy.” He characterized the style as “dreadlocks,” but admitted that he did not really know the names of women’s hairstyles.

The Respondent denied that her hair fell beneath the collar line. She stated that she was in the Desk area on January 7, 2006, and was “hunched over” while working on a computer. She testified that her hair was braided, but was not in dreadlocks and did not contain a weave. Her hair was in a bun, though not as tight as when she testified.

The Court finds that the Department proved by a preponderance of the evidence that the Respondent’s hair fell below her collar on the day Edwards visited. Edwards was a disinterested witness. The Court rejects the Respondent’s claims that Trotta had told her that Edwards was out to get her. In fact, the evidence contradicts that bald assertion. Edwards stated that the first time he observed the Respondent’s hair below her collar, on May 4, 2005, he did not immediately issue a violation. Rather, because he thought the hairstyle might have religious significance, he checked with labor relations personnel. Even when he found out that it would be a contravention of Department rules even if it had religious significance, he still did not issue a

violation. Edwards also related that he had as many as 200 CDs to Department members for violations relating to personal appearance. As the Advocate pointed out on summation, it was Edwards' role to focus on these kinds of infractions that might otherwise seem trivial.

Moreover, when Edwards once observed the Respondent without her uniform tie, he did not issue a CD because he "was unaware of the procedure," i.e., that a FINEST message was sent out allowing uniformed members to wear turtlenecks underneath the long-sleeve shirt without a tie.

In sum, there was no evidence to show that Edwards had reason to accuse the Respondent falsely.

The Respondent, on the other hand, was an interested witness as a matter of law, cf. People v. Agosto, 73 N.Y.2d 963, 967 (1989). She conceded that her hair was not tied as tightly in the back as it was on the day of trial. Edwards, of course, had a much better standpoint to observe the back of the Respondent's hair than the Respondent herself did. Edwards' lack of knowledge as to exactly what to call the braid style of the Respondent's hair did not alter his ability to observe her hair and see that it fell below her collar. The Court rejects the Respondent's suggestion that her hair might have appeared to be below the collar because of the way she was leaning; if she was hunched over a computer, her hair would have risen above her collar, not below it. Furthermore, the Respondent's account of the reaction of Lieutenant Hernandez – he spoke to Edwards, then pointed to the Respondent's or his own hair and advised her to return to her office – indicated that he at least understood what Edwards was talking about.

In sum, the Court finds the Respondent Guilty of Specification 1.

Specification No. 2

The Respondent is charged in the second specification with improperly answering the phone at the 50 Precinct on March 7, 2006. *Patrol Guide* § 203-05 (11) directs Department

members to answer the telephone promptly, and to “courteous[ly]” state the command, rank or title, surname, and “May I help you?”

Lieutenant Trotta, the Operations Coordinator, testified that he telephoned the Respondent, but when she answered, she was “barely audible” and “mumbled something like 50 DVO.” Trotta said that the Respondent told him she wasn’t feeling well, and that she would answer that way because she was concerned about Domestic Violence suspects calling the office.

Police Officer Castro, who worked in the DVO, testified that on March 7, 2006, the Respondent answered, “50 DVO.” Castro believed that Trotta was on the line, and the Respondent told him, “We have gone to Domestic Violence training, where we have been instructed to answer the phone this way.”

The Respondent testified that she was getting medical treatment after falling at the DVO when Trotta called. She answered, as she normally did, “50 DVO, Sergeant Wilson.” She testified that she answered the phones this way because “[w]e have to be careful for the perpetrator.”

Thus, there is no real dispute that the Respondent did not answer the phone in the specific manner prescribed by the Patrol Guide. The Respondent claimed that she answered differently in the DVO because of safety concerns. The argument went as follows: Members from the DVO might call a domestic violence complainant, and the DVO’s number could appear on the complainant’s Caller ID. Because a domestic violence perpetrator might well be in proximity to the complainant, the perpetrator could see the incoming number and call back. If members answered the phone as directed by the Patrol Guide, the perpetrator would know that the complainant was cooperating with the police, thus endangering the complainant.

The argument fails for several reasons. In a paramilitary organization such as ours, employees are not entitled to change rules because they disagree with them, even if they believe

in good faith that they have a better way of doing things. To that end, neither the Respondent nor anyone else testified that the DVO staff actually were ordered by superiors to answer the phone differently. At most, the Respondent asserted that she had spoken to the Chief of Domestic Violence about the matter. The Court further notes that the Respondent's phone answer – "50 DVO, Sergeant Wilson" – still would have identified her to a potential domestic violence suspect as law enforcement.

The Respondent also asserted that she was being singled out for answering the phone this way, when other Department members, like Castro and Hardiman, also answered the phone incompletely and were not disciplined. Selective prosecution is not a defense in an administrative trial. Such claims may only be brought in a judicial proceeding such as those brought under Article 78 of the Civil Practice Law and Rules. See Matter of Aria Contr'g Corp. v. McGowan, 256 A.D.2d 1204 (4th Dept. 1998); Matter of Bell v. New York State Liquor Auth., 48 A.D.2d 83, 84 (3d Dept. 1975). Thus, the Respondent's argument that others are not punished for the same conduct is not a recognizable defense. See, e.g., Matter of Department of Transp. v. Jones, OATH Index No., 1517/07 (Aug. 10, 2007) (rejecting argument by highway repairer charged with using Blackberry on duty, who claimed that everyone used their cell phones on duty but only she was being disciplined).

In any event, Castro, one of the Police Officers in the DVO, testified that one time, she answered the phone, "50 DVO," as instructed by the Respondent. Trotta, who was on the other line, "paused," and told her, "Is this how you answer the phone, Officer Castro?" Hardiman, the Commanding Officer, testified that he knew of two Police Officers, whom he identified by name, that were cited for improperly answering the phone. One officer received a Command Discipline after she thought that her friend was calling when it was actually a Captain. The second failed a CPR / Quality Assurance test. Hardiman noted that on the test, "It is a caption unto itself,

‘Answered phone name, rank and command.’ Furthermore, Trotta did not re-instruct only the Respondent; he called her, Castro and Guerrero into his office to speak to them as a group about the matter. Therefore, the evidence failed to show that Trotta was targeting the Respondent as part of some vendetta. Rather, the evidence showed that he had a genuine concern about the issue, and that, in fact, the Department took the matter seriously as well. Thus, the Respondent is found Guilty of Specification 2.

Specification No. 3

The Respondent, a Sergeant, is charged with discourtesy toward Lieutenant Trotta for allegedly crumpling up a photocopy of the Patrol Guide section that delineates how Department phones must be answered. It was not disputed that the Respondent did “something” to the paper; the parties disagreed about what precisely she did.

Trotta testified that the Respondent crumpled the paper while facing toward him and inside the doorway of his office. He called it “an utmost show of discourtesy.” Guerrero only heard a crumple. She characterized it as a quick crumpling. Of the three DVO members, the Respondent was closest to the door. Guerrero said that the Respondent did not crumple the paper in Trotta’s face. Guerrero thought, “This is not good,” and thought the Respondent’s act was discourteous to Trotta. Castro also testified that she heard a crumpling of paper. She thought the crumpling was disrespectful to Trotta as a Lieutenant and a supervisor. She tried to leave Trotta’s office as soon as possible because she wanted “nothing else to do with anything else that was going to go on.” Hardiman testified that when he spoke to the Respondent later that day, she “hung her head” and admitted she was wrong to crumple the paper.

The Respondent denied acting discourteously toward Trotta. After first admitting that she crumpled the paper, the Respondent then denied that she did so. She characterized

"crumpling" as "balling it up" or using "force and intention." She said that if she had crumpled it, she would have thrown it in the garbage. Rather, she said that she folded the paper lengthwise, like an accordion. She admitted that she was upset, and said that she was not thinking and did not know what she was doing.

The Court finds that the Respondent did crumple the Patrol Guide section and that her action was discourteous toward Trotta. Her various characterizations of what exactly she did to the paper do not change the fact that it was a display of defiance and disrespect toward a supervisor's directive that she answer the phone in accordance with *Patrol Guide* § 203-05 (11). The three Department witnesses to the incident all took it as such. It was, in essence, a non-verbal statement by the Respondent to Trotta that she was defiantly rejecting Trotta's order. Cf. Department of Probation v. James, OATH Index No. 535/90 (Feb. 6, 1990) (employee's crumpling of memo given to her by her branch chief was meant to be disrespectful and constituted misconduct).

The Respondent also argued that because Trotta did not order her to keep the paper or hang it up in the DVO, she was free to discard it. That may be true but it is completely irrelevant. The issue is not whether the Respondent was permitted to throw out the paper, but *how* she discarded it. She might have been well within her rights to throw the paper out at a later time. That does not change the fact that her method of discarding it was discourteous to Trotta, and was meant to be taken as such.

Accordingly, the Respondent is found Guilty of Specification 3.

Specification No. 4

The fourth specification charges the Respondent with "fail[ing] and neglect[ing]" to complete an assigned communication. This communication was a civilian's complaint that she

had received discourteous treatment from members that responded to a call about an order of protection. The due date for the communication was December 5, 2005. The Respondent testified that she completed it in a timely manner, specifically recalling that she placed the communication in the mailbox (although she remembered Trotta, not Lichtbraun, assigning her the communication).

At the time of the assignment, Lichtbraun was in charge of assigning and keeping track of them. He testified that the Respondent failed to hand in the communication on time. He stated that he would have given her a written notice of the tardiness, but could not specifically recall doing so here. Lichtbraun could not produce a copy of the notice at trial because, he testified, he generally saved them on floppy disks, but took the box of disks with him to his new command and could not find the box.

Trotta, who took over the supervision of these assignments from Lichtbraun, did not dispute that the Respondent might have completed the assignment at some point. In fact, he “took her at her word” on this. Trotta issued the CD because she did not give him a duplicate copy.

The Court finds the Respondent Not Guilty of this specification because it failed to produce evidence sufficient to prove that the Respondent failed to hand in the communication in a timely manner. The only evidence the Department presented was that Lichtbraun knew, somehow, that the Respondent did not hand it in, and that Trotta could not find it. Yet the most competent proof of when the communication was completed – the logbook – was not produced. Nor was the past-due notice that was putatively sent to the Respondent by Lichtbraun. As the Respondent validly pointed out, it was possible that paperwork literally got lost in the shuffle when Trotta took over for Lichtbraun. Trotta stated that there were several outstanding communications when he assumed the supervision of those assignments. Lichtbraun never

testified that he had a specific recollection of never being approached by the Respondent with the completed communication; in fact, she would have left it in the mailbox rather than give it to him personally. Stated differently, the Court credits the Respondent's assertion that she completed the assignment over Lichtbraun's uncorroborated contention that he did not receive it. As such, the Court finds the Respondent Not Guilty of Specification 4.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222, 240 (1974). The Respondent was appointed to the Department on July 5, 1989. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of three Specifications: having her hair, while in uniform, reach her collar; answering the phone without giving her rank, name, command, and saying, "May I help you?"; and discourtesy toward a supervisor by crumpling a printed order he just handed to her. When examined individually, these are not major offenses. They could have been resolved with Command Disciplines, and, in fact, the first and third Specifications were preferred because CDs were issued but the Respondent, as is her prerogative, did not accept them. On the other hand, the common thread that links these relatively minor offenses is the Respondent's failure to recognize and acknowledge that it is her personal responsibility to ensure that she complies with all relevant Patrol Guide rules, no matter how trivial or impertinent she might find them.

By far, the most serious of the Respondent's infractions was the crumpling of the paper, Specification 3. She escalated a disagreement with Trotta about how the DVO phones should be

answered into a rank display of defiance toward him and his order. No amount of sophistry can change what was without a doubt a discourteous act toward a supervisor. The Court recommends a penalty of 20 vacation days for this offense, as well as for the two other Specifications. See Disciplinary Case No. 78287/02 (after plea, 6-year member with no prior record forfeited 21 suspension days already served for discourtesy to a supervisor; the member was on limited duty and assigned to clerical; having become upset with the assignment, she screamed obscenities at supervisor in presence of other Department members); *Disciplinary Case No. 78727/03* (after plea, 12-year member with no record forfeited 20 vacation days; the member called a supervisor "a dick" when directed to prepare a leave-of-absence report after arriving to work late).

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials

APPROVED



APR 29 2008
RAYMOND W. KELLY
POLICE COMMISSIONER